

JUSTIFICATION FOR AN EXCEPTION TO FAIR OPPORTUNITY

Acquisition Title:	NINDS Administrative Support Services Extension Option #2
Agency:	NIH/NINDS
Acquisition Year (FY):	26
Author:	[REDACTED]

2. Description of Action:

Nature:	☐ New Requirement	☐ Follow-on Order	
	☒ Modification to Existing Task Order 75N95023F00001 _		
Order Against:	Multiple Award ID/IQ Contract Number: 75N98023D00020		
Pricing:	☐ Firm-Fixed Price	☒ Time & Materials	☐ Cost Type
Funds:	☐ OMA	☒ Other Funds:	Intramural Administrative Management Branch Division of Intramural Research National Institute of Neurological Disorders & Stroke

3. Description of Applicable Contract Provisions:

Summarize all contract provisions relevant to this determination.

The Administrative Services Task Order for the National Institutes of Neurological Disorders and Stroke (NINDS) outline a structured framework for providing administrative staff to the Division of Intramural Research. These personnel provide indispensable daily operational support that directly sustains the research and clinical mission of the Division of Intramural Research. The scope of work includes the labor categories: Senior Administrative Assistants (Admin 3), who support senior-level staff with complex document analysis; Executive Assistants (Admin 4), who manage confidential materials and support executive management; and a Deputy Program Manager (DPM), who serves as the primary point of contact and oversees task order operations. The period of performance for this extension is for two months from April 24, 2026, through June 23, 2026. Work is conducted at the NIH campus in Bethesda, MD during assigned 8-hour shifts between 7:00 AM and 5:30 PM on weekdays.

Their work includes coordinating patient appointments and procedures, maintaining protocol and regulatory documentation, processing travel and financial actions, managing supplies and equipment, supporting hiring and onboarding actions, maintaining official records, coordinating leadership operations, and ensuring day-to-day continuity across research and clinical programs. While these duties are often categorized as administrative, they are foundational and operationally essential to the execution of research and clinical care activities.

Contractual obligations include the submission of monthly progress reports due by the 30th of each month and a final achievement report at the conclusion of the order. Furthermore, the relationship is strictly defined as non-personal services, meaning government employees are prohibited from supervising contractor staff; all direction and management must come from the DPM. Performance is measured against specific standards requiring a 95% acceptable quality level, verified through annual reviews. Security and privacy protocols are rigorous, necessitating a National Agency Check with Inquiries (NACI) for all staff, the safeguarding of Privacy Act data, and a mandatory one-hour reporting window for any security breaches.

4. Description of Supplies or Services:

The estimated value of the proposed action, including all options, is: \$ [REDACTED]

Nature of Services: The required services consist of high-level administrative and operational support essential to the mission of the Division of Intramural Research (DIR) within the National Institute of Neurological Disorders and Stroke (NINDS). These personnel manage foundational tasks—including patient scheduling, protocol

documentation, travel/financial processing, and laboratory procurement—that allow federal scientific and clinical staff to focus on primary research and patient care.

Labor Categories and Quantities: This requirement is for the continued services of the following personnel: One (1) Full-Time Equivalent (FTE) Senior Administrative Assistant: Providing high-level coordination and leadership support. Twelve (12) Executive Assistants: Supporting day-to-day operations across approximately 80 intramural laboratories and programs. Program Manager Support (12 hours): Providing limited oversight to ensure contract compliance and deliverables management.

Period of Performance: This action is a two-month extension to the existing Task Order required to prevent a lapse in service while the follow-on competitive procurement is finalized. The anticipated performance dates of the extension is:

Start Date: April 24, 2026

End Date: June 23, 2026

Purpose: It serves strictly an extension to maintain the status quo until the successor contract is awarded through the competitive process currently underway.

Action is a modification to an existing order utilizing FAR Clause 52.217-8, Option to Extend Services (November 1999). The scope of work is identical to the services performed under the basic order.

5. Authority and Rationale:

The Contracting Officer shall give every awardee a fair opportunity to be considered for a delivery/task order exceeding the micro purchase threshold unless one of the following statutory exceptions applies. [FAR 16.505\(b\)\(2\)](#). Mark the applicable exception:

The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays [[FAR 16.505\(b\)\(2\)\(i\)\(A\)](#)];

The agency's need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays. The task order extension will go solely to Brandan Enterprises, Inc (BEI) for efficiency, as it continues an existing LTASC III Task Order 75N95023F00001 (contract # 75N98023D00020), and all contractors had a fair chance for the original order.

Impact on Mission: The inability to secure this short-term extension will result in unacceptable delays in research and patient care, as explained below under the service impact.

Continuity of Operations: These positions require specific knowledge of NIH/NINDS internal protocols, regulatory documentation systems, clinical scheduling and software.

Unique Constraints: Introducing a new vendor for a 60-day period would be counterproductive, as the time required for onboarding, security clearances, and training would exceed the duration of the extension itself, resulting in the very operational disruption this action seeks to avoid.

Lack of Service Impact: A lack of continued services would necessitate the transfer of administrative responsibilities to Principal Investigators and Physicians, leading to inefficient use of highly specialized federal personnel. This misallocation would significantly diminish productivity across the Institute. Potential consequences include cancellation of patient visits, postponement of time-sensitive neurological research, and reduced productivity among more than 80 intramural laboratories. If services lapse, federal scientific and clinical staff—including principal investigators, physicians, laboratory personnel, the Clinical Director, and Scientific Director—would be directly affected. These professionals would be required to spend considerable time away from core functions such as patient care, protocol implementation, data analysis, laboratory management, and strategic oversight to manage scheduling, travel processing, procurement coordination, records management, staffing support, and other routine operational duties. Although often classified as administrative, these tasks are essential to the successful execution of research and clinical care. Without them, the infrastructure supporting scientific discovery and patient-based research would deteriorate rapidly. Service discontinuity would delay or suspend patient care activities, disrupt animal care operations, and interrupt ongoing research studies, forcing federal staff with advanced training to divert from their primary roles. Furthermore, lapses in continuity would jeopardize significant federal investments, potentially resulting in data loss, delayed research outcomes, increased restart costs, and persistent inefficiencies. Ultimately, these issues would prevent the Institute and the U.S. government from achieving their mission, thereby impacting the American public.

Program Manager :	
Name:	Kotrina Aldag KOTRINA W. ALDAG-S Digitally signed by KOTRINA W. ALDAG-S Date: 2025.04.22 11:15:13 -0400
Position Title:	Acting Chief Administrative Officer
Email address:	kotrina.aldag@nih.gov
Phone:	(301) 496-122

Program Manager Supervisor (or one level above Program Manager)	
Name:	Jill Harper
Position Title:	Acting Executive Officer
Email address:	jharper@mail.nih.gov
Signature:	JILL R. HARPER-S Digitally signed by JILL R. HARPER-S Date: 2025.04.22 11:36:05 -0400
Date:	(301) 594-0550

10. Contracting Officer's Approval (Required for proposed contract not to exceed \$700,000 (value calculated including all options)): I hereby certify that this justification is accurate and complete to the best of my knowledge. I approve this sole source justification subject to availability of funds, and provided that the services and supplies herein described have otherwise been authorized for acquisition.

Name:	Kyle Wisor	Phone:	(301) 287-002
Signature:	KYLE E. WISOR-S Digitally signed by KYLE E. WISOR-S Date: 2025.04.22 11:36:05 -0400	Date:	

11. Legal Review:
All J&As greater than \$68 million must have a legal review from the General Law Division of the Office of the General Counsel prior to sending it to the Department.

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12. OPDIV Competition Advocate Approval (Required for proposed contract over \$700,000 but not exceeding \$13.5 million value calculated including all options)):

I have reviewed this justification and find that it adequately supports an exception to fair opportunity.

Name:		Phone:	
Signature:		Date:	

13. Office of Small and Disadvantaged Business Utilization:

I have reviewed this justification and find that it adequately supports an exception to fair opportunity.

Name:		Phone:	
Signature:		Date:	

14. OPDIV HCA Approval (Required for proposed contract over \$13.5 million but not exceeding \$68 million

- ☐ Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized [FAR 16.505(b)(2)(i)(B)];

N/A

- ☐ The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order [FAR 16.505(b)(2)(i)(C)];

N/A

- ☐ It is necessary to place the order to satisfy a minimum guarantee [FAR 16.505(b)(2)(i)(D)]; or

N/A

- ☐ A statute expressly authorizes or requires that the purchase be made from a specified source. [FAR 16.505(b)(2)(i)(E)].

N/A

6. Agency Actions to Take or Remove Barriers That Led to Fair Opportunity Exception (If applicable):

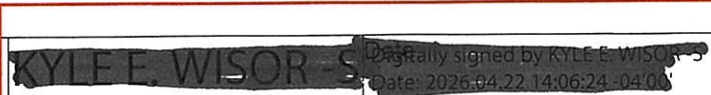
Based on the specific circumstances of the acquisition proposed, the contractor's pricing is in accordance with the labor rates established under the LTASC III parent contract.

It is determined that the National Institute of Neurological Disorders & Stroke (NINDS), Intramural Administrative Management Branch (IAMB) will require these support services beyond the proposed extended period of performance. The IAMB plans to issue a new Task Order Request for Proposal (TORP) to compete with this requirement under NIH's LTASC III contract vehicle once it becomes available for issuing solicitations and task orders.

This extension will allow the Government time to execute a competitive Task Order.

7. Fair and Reasonable Price/Cost Determination: I hereby determine that the anticipated price/cost for this contract action will be fair and reasonable.

Fair and reasonable price determination was based on historical pricing and comparison between the Government's estimate and the proposed pricing.

Signature:	 Digitally signed by KYLE E. WISOR - 5 Date: 2026.04.22 14:06:24 -04'00'
Name:	Kyle Wisor
Title:	Contracting Officer

8. Any other facts supporting the justification:

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9. Technical / Requirements Certification: By my signature below, I certify that the supporting data under my review which is included in this Justification for an Exception to Fair Opportunity is accurate and complete.

value calculated including all options)):

Name:		Phone:	
Signature:		Date:	

15. Department Competition Advocate:

Concur:	☐	Non-Concur:	☐
Name:		Phone:	
Signature:		Date:	

16. HHS Senior Procurement Executive (SPE) Approval:

Based on the foregoing justification, I hereby approve the procurement of stated supplies/services being procured on the exception to the fair opportunity basis pursuant to the authority of paragraph 5, 41 U.S.C. 4101, as implemented by [FAR 16.501-2](#).

State supplies/services being procured:

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State the full statutory authority and FAR cite and title, consistent with paragraph 4, e.g. 41 U.S.C. 3304:

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Name:		Phone:	
Signature:		Date:	